

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

LARRY DAILY,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their capacities
as New York City police officers, ROSA ALMONTE,
DAPHINA SALOMON, MARK GIORDANO, RAMYSH
BANGALI, MARLEN QUINONES, and JOHN or JANE
DOE 1-10,

Defendants.

X Index No.:
Purchased:SUMMONSPlaintiff designates **Bronx County** as
the venue for trial by jury.The basis for venue is where the tort
arose.

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
December 23, 2019
SIM & DEPAOLA, LLP

BY: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer ROSA ALMONTE
Shield # 2432, Tax Id 947191
At 50th Precinct
3450 Kingsbridge Avenue
Bronx, New York 10463

Police Officer DAPHINA SALOMON
Shield # 18057, Tax Id 931131
At 50th Precinct
3450 Kingsbridge Avenue
Bronx, New York 10463

Sergeant MARK GIORDANO
Shield # 756, Tax Id 944596
At 50th Precinct
3450 Kingsbridge Avenue
Bronx, New York 10463

Sergeant RAMYSH BANGALI
Shield # 3150, Tax Id 936168
At 18th Precinct
306 West 54th Street
New York, New York 10019

Sergeant MARLEN QUINONES
Shield # 2192, Tax Id 927381
At 50th Precinct
3450 Kingsbridge Avenue
Bronx, New York 10463

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DOE 1-10,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff, LARRY DAILY, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a January 9, 2019 incident in which Defendants, acting under color of state law, unlawfully assaulted, arrested and detained Plaintiff. As a result, Plaintiff was deprived of his liberty and suffered physical injuries. Plaintiff was incarcerated over the course of nineteen (19) hours, until the he was released on January 10, 2019. He was maliciously prosecuted, until the dismissal of all charges, on July 23, 2019.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff LARRY DAILY (“Plaintiff”) resides at 5360 Broadway, Apt. 13D, County of Bronx, State of New York.
4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant ROSA ALMONTE was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant ALMONTE was, at the times relevant herein, a police officer under Shield #2432, Tax ID # 947191 located at the 50th Precinct, 3450 Kingsbridge Avenue, Bronx, New York 10463. Defendant ALMONTE is being sued in his individual and official capacities.
8. Defendant DAPHINA SALOMON was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant SALOMON was, at the times

- relevant herein, a police officer under Shield # 18057, Tax ID # 931131 located at the 50th Precinct, 3450 Kingsbridge Avenue, Bronx, New York 10463. Defendant SALOMON is being sued in his individual and official capacities.
9. Defendant MARK GIORDANO was, at all times here relevant, a sergeant employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant GIORDANO was, at the times relevant herein, a sergeant under Shield # 756 Tax ID # 944596 located at the 50th Precinct, 3450 Kingsbridge Avenue, Bronx, New York 10463. Defendant GIORDANO is being sued in his individual and official capacities.
10. Defendant RAMYSH BANGALI was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant BANGALI was, at the times relevant herein, a police officer under Shield # 3150, Tax ID # 936168 located at the 50th Precinct, 3450 Kingsbridge Avenue, Bronx, New York 10463. Defendant BANGALI is being sued in his individual and official capacities.
11. Defendant MARLEN QUINONES was, at all times here relevant, a sergeant employed by the NYPD and as such was acting in the capacity of an agent, servant, and employee of the City of New York. Defendant QUINONES was, at the times relevant herein, a sergeant under Shield # 2192, Tax ID # 927381 located at the 50th Precinct, 3450 Kingsbridge Avenue, Bronx, New York 10463. Defendant QUINONES is being sued in his individual and official capacities.
12. At all times relevant Defendants John and Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At

- this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1-10 but is within knowledge of the Defendants.
13. At all times relevant herein, Defendants John and Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1-10 are sued in their individual and official capacities.
14. At all times here mentioned Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
15. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
16. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
17. Plaintiff has complied with municipal Defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
18. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

19. On January 9, 2019, at approximately 6:00 P.M., Plaintiff was in the vicinity of 5213 Broadway, County of the Bronx, State of New York.
20. While Plaintiff was standing on the sidewalk having a snack, he was confronted and assaulted by Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10.

21. Defendants', including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and other unidentified officers, John or Jane Doe 1-10 forcibly struck the Plaintiff in his leg, head, and back
22. At no time did Plaintiff give Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 a reason to strike him in his leg, head, and back.
23. At no time prior to Plaintiff being struck in his leg, head and back, did Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 identify themselves as Police Officers and Sergeants.
24. At no time prior to Plaintiff being kned to the right leg, violently forced to the ground, grabbed by the head, and having his head put against the sidewalk and knee on his back did Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10, observe Plaintiff committing a crime or violation of the law.
25. Plaintiff was searched and seized in an unlawful manner by Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and other unidentified officers, John or Jane Doe 1-10, when they each physically grabbed Plaintiff's body, leg and head without probable cause and forced him to the ground.
26. While Plaintiff was on the ground, Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and other unidentified officers, John or Jane Doe 1-10 proceeded to grab, force to ground, punch and kick Plaintiff about his body.
27. Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 had no probable cause or reasonable

suspicion to arrest, detain or stop Plaintiff, as Plaintiff had not committed any crime or violation of the law.

28. Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 fabricated a false narrative, in which they claimed Plaintiff resisted attempts by Defendants to place him under arrest, when they knew such claims to be untrue and complete fabrications.
29. Plaintiff had multiple assaults and batteries committed to his person including but not limited to being placed in handcuffs too tight and being kneed, punched and kicked repeatedly about his body.
30. Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 suppressed evidence and engaged in conduct undertaken in bad faith, namely fabricating false accounts that Plaintiff resisted arrest.
31. Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 have displayed a pattern and practice of falsely accusing individuals of resisting arrest in cases where Defendants have used excessive and unreasonable force.
32. During all of the events described, the Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 acted maliciously and with intent to injure Plaintiff.
33. At all times relevant hereto, Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10 engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or

failed to intervene when Defendants observed others doing so, all in furtherance of Plaintiff's being seriously injured.

34. As a direct and proximate result of the acts of Defendants, including ALMONTE, SALOMON, GIORDANO, BANGALI, QUINONES and John or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.
35. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
36. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIRST CAUSE OF ACTION

Assault and Battery Under
New York State Law

37. The above paragraphs are here incorporated by reference as though fully set forth.
38. Defendants made Plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
39. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
40. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

41. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

42. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

43. The above paragraphs are here incorporated by reference as though fully set forth.

44. The Defendants, acting under color of state law, violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

45. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

46. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

47. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Failure to Intervene Under
New York State Law

48. The above paragraphs are here incorporated by reference as though fully set forth.

49. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

50. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
51. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
52. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

53. The above paragraphs are here incorporated by reference as though fully set forth.
54. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
55. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
56. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
57. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
58. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTIONNegligent Hiring, Retention and Supervision Under
New York State Law

59. The above paragraphs are here incorporated by reference as though fully set forth.
60. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee Defendants.
61. Defendant City breached that duty of care.
62. Defendant City placed Defendants in a position where they could inflict foreseeable harm.
63. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
64. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.
65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
66. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTIONMunicipal "Monell" Liability Under
42 U.S.C. § 1983 Against Defendant City

67. The above paragraphs are here incorporated by reference as though fully set forth.
68. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

69. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

70. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.

71. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with Defendant City's employees.

72. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

74. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- h) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: December 23, 2019

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'P. Sim', is written over a horizontal line.

SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Blvd - Ste 201

Bayside, New York 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Peter Sim, Esq, an attorney admitted to practice in the courts of New York State, state that I am an partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 23, 2019



PETER SIM, ESQ.

Index No.:

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MARK GIORDANO, RAMYSH BANGALI,
MARLEN QUINONES, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: PETER SIM
Attorney for Plaintiff
42-40 Bell Boulevard, Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for